

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Conway	Team: Squad #04	CCRB Case #: 201501419	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/25/2015 11:44 PM	Location of Incident: In lobby of § 87(2)(b)	18 Mo. SOL 8/25/2016	Precinct: 73		
Date/Time CV Reported Fri, 02/27/2015 11:19 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/27/2015 11:19 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Rashan Lacoste	02285	935149	GANG BN
2. DT3 Gabriel Echevarria	06488	940119	GANG BN
3. DT3 Jorge Tricoche	06542	935871	GANG BN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Rashan Lacoste	Abuse: Det. Rashan Lacoste frisked § 87(2)(b)	A . Substantiated
B . DT3 Gabriel Echevarria	Abuse: Det. Gabriel Echevarria frisked an individual.	B . Unsubstantiated
C . DT3 Jorge Tricoche	Abuse: Det. Jorge Tricoche frisked an individual.	C . Unsubstantiated
D . DT3 Rashan Lacoste	Abuse: Det. Rashan Lacoste searched § 87(2)(b)	D . Unsubstantiated
E . DT3 Rashan Lacoste	Abuse: Det. Rashan Lacoste strip-searched § 87(2)(b)	E . Unsubstantiated
F . DT3 Rashan Lacoste	Abuse: Det. Rashan Lacoste threatened to arrest § 87(2)(b)	F . Exonerated
G . DT3 Rashan Lacoste	Discourtesy: Det. Rashan Lacoste spoke discourteously to individuals.	G . Unsubstantiated

Case Summary

On February 27, 2015, § 87(2)(b) filed this complaint with the CCRB by phone. He complained that at 11:45 p.m. on February 25, 2015, he and two of his unidentified friends were stopped by plainclothes detectives in the lobby of his building at § 87(2)(b) (a NYCHA development) for possession of open containers. The investigation identified the officers involved as Det. Rashaun Lacoste, Det. Gabriel Echevarria, and Det. Jorge Tricoche of Brooklyn North Gang Squad. Det. Lacoste frisked § 87(2)(b) (**Allegation A**), while Det. Echevarria allegedly frisked one of the individuals and Det. Tricoche allegedly frisked the other (**Allegations B and C**). Det. Lacoste then allegedly searched § 87(2)(b) pockets (**Allegation D**), strip-searched him (**Allegation E**), and threatened to arrest him (**Allegation F**). § 87(2)(b) also alleged that Det. Lacoste spoke discourteously to the other two individuals (**Allegation G**) (CCRB complaint encl. 4a-c; CCRB statement encl. 5a-e).

Mediation, Civil and Criminal Histories

- Mediation was presented to § 87(2)(b) but he rejected this option § 87(2)(b)
- A FOIL request to the Office of the Comptroller was sent on April 16, 2015, seeking any notice of claim that § 87(2)(b) filed in regards to this case. In a conversation on April 13, 2015, § 87(2)(b) stated he has not filed a lawsuit but he wants to do so eventually.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) (encl. 2e). § 87(2)(b) filed another complaint after this one, § 87(2)(b)
 - Det. Lacoste has three substantiated allegations against him in his ten-year tenure (encl. 2a-b).
 - In CCRB 201401452, allegations of stop, frisk, and search were substantiated against Det. Lacoste. The NYPD has yet to come to a disposition on these allegations. § 87(2)(g)
 - Det. Echevarria has no substantiated allegations against him in his nine-year tenure (encl. 2c) § 87(2)(g)
 - Det. Tricoche has two substantiated allegations against him in his ten-year tenure (encl. 2d).
 - In CCRB 201401452, allegations of stop and frisk were substantiated against Det. Lacoste. The NYPD has yet to come to a disposition on these allegations. § 87(2)(g)
- § 87(2)(b). Det. Lacoste was also substantiated for this case, as noted.

Attempts To Identify Additional Victims

- Neither § 87(2)(b) nor § 87(2)(b) knew the names of the other two individuals involved in the incident. Both described them as homeless males who hang out in the building, and § 87(2)(b) stated that one of their names was possibly § 87(2)(b). § 87(2)(b) said he would give the undersigned's business card to them if he saw them again. A field work canvass for the two individuals was negative (encl. 15f; IA #48 of digital case file).
- All officers testified that they did not see or interact with other two men. Their memo books corroborate that their only stop was of § 87(2)(b) (encl. 7d-f, 8b-d, 9b-d), and no UF-250 was prepared for any other person (handwritten PSA 2 UF-250 index encl. 10m, confirmation of negative computerized results encl. 12a, confirmation of negative handwritten additional UF-250 for gang unit encl. 17j). Given these circumstances, the investigation was unable to identify and contact these additional victims.

Finding and Recommendations

Officer Identification

According to § 87(2)(b) he was hanging out with two unidentified friends in the lobby when three plainclothes officers entered. § 87(2)(b) described all three officers frisking individuals in the lobby, with each officer picking a civilian in the lobby to frisk. Though all officers denied there were any other persons stopped, Det. Lacoste admitted to frisking § 87(2)(b) which Det. Echevarria corroborated. Det. Lacoste also filled out the UF-250 indicating that he frisked § 87(2)(b). In the course of their interaction, § 87(2)(b) observed Det. Lacoste's shield number around his neck and provided it to the investigation, suggesting that they had close-range contact with one another (e.g. a frisk). § 87(2)(b) and § 87(2)(b) both described the officer that frisked § 87(2)(b) as having facial hair, and MOS photos (encl. 7a, 8a, 9a) indicate that Det. Lacoste is the only detective with consistent facial hair out of the three.

§ 87(2)(b) gave a somewhat divergent description of officers (statements encl. 5a-e). He described one officer as a plainclothes black male, 30s, 5'11, and another officer as a plainclothes Hispanic male, late 20s, 5'11 – seemingly describing Det. Lacoste and Det. Echevarria respectively. Race aside, the physical descriptions, weights, ages, and builds of the two detectives are close enough to warrant some confusion between them. § 87(2)(b) generally corroborated § 87(2)(b) descriptions of officers, but was viewing through the obscured lens of a peephole and the officer's back was to him, so his testimony is not fully reliable (§ 87(2)(b)'s statement encl. 6a). Finally, § 87(2)(b) admitted he was drinking malt liquor at the time of the incident, and according to officers he was intoxicated and smelled of alcohol. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

• § 87(2)(g)

Allegation A—Abuse of Authority: Det. Rashaun Lacoste frisked § 87(2)(b)

It is undisputed that Det. Lacoste frisked § 87(2)(b) § 87(2)(b) alleged that Det. Lacoste patted down his jacket and pants pockets, while Det. Lacoste confirmed that he patted down the “entirety” of § 87(2)(b) body, starting at the armpits and moving down the torso to the bottom of his legs.

According to Det. Lacoste (encl. 7b-h), at the point he frisked § 87(2)(b) he had already asked several times for § 87(2)(b) to provide his identification and been refused, and § 87(2)(b) was behaving in an argumentative manner. Det. Lacoste frisked § 87(2)(b) for officer safety reasons before § 87(2)(b) provided his identification.

Det. Echevarria stated that the reason for the frisk was that § 87(2)(b) refused numerous orders to keep his hands in sight (encl. 8b-f). No other officer or civilian corroborates this.

Det. Lacoste indicated on his UF-250 that he prepared that § 87(2)(b) was stopped for “actions indicative of ‘casing’” and “actions indicative of engaging in violent crimes.” It also indicates that § 87(2)(b) was frisked for “refusal to comply with officer’s directions.” When asked to elaborate, Det. Lacoste said that casing meant that § 87(2)(b) was talking to and accosting people in the lobby in a high-crime area, and that § 87(2)(b) “could have been trying to rob someone.” Det. Lacoste reiterated that there had been a firearm recovered in that development the week prior, and it is a high-shooting location. Det. Lacoste also reiterated that at the time that § 87(2)(b) was stopped, there was no one else in the lobby. Det. Lacoste and Det. Echevarria denied that there were any bulges on § 87(2)(b) or any other factors behind the frisk; Det. Tricoche (encl. 9b-f) stated he did not pay attention to if § 87(2)(b) had bulges.

Det. Echevarria added his own interpretation of “casing” which meant “hanging out in the lobby.” Det. Echevarria stated that they get complaints from NYCHA residents about people hanging out smoking marijuana in the lobby, and the Gang unit does verticals to deter this. It is undisputed that § 87(2)(b) was not smoking marijuana at the time of his stop.

The standard for frisk is set by *People v. DeBour* 40 N.Y.2d 210; 352 N.E.2d 562 (1976) (encl. 1a-l), which holds that an officer must have reasonable suspicion that he is in danger by virtue of the subject being armed in order to frisk that subject.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation B—Abuse of Authority: Det. Gabriel Echevarria frisked an individual.

Allegation C—Abuse of Authority: Det. Jorge Tricoche frisked an individual.

§ 87(2)(b) alleged that Det. Echevarria frisked one of the individuals and Det. Tricoche frisked the other. However, in his initial phone statement provided when filing the complaint over phone two days after the incident (encl. 4a-c), he stated that an officer identified as Det. Lacoste frisked one of the two men rather than Det. Echevarria or Det. Tricoche (it is unclear which officer he substituted Det. Lacoste for).

§ 87(2)(b) who provided a telephone statement but was uncooperative in having it verified (encl. 15a-g), could only say that “the officers” frisked the two men, but could not be more specific about their descriptions. As discussed earlier, neither of the two men could be identified or interviewed.

All three detectives were adamant that § 87(2)(b) was the only civilian who they interacted with (Det. Lacoste encl. 7b-h, Det. Echevarria encl. 8b-f, Det. Tricoche encl. 9b-f). This is corroborated by their memo books and the UF-250 prepared only for § 87(2)(b) Det. Lacoste in his statement made passing reference to unknown civilians walking out of the lobby when they were walking in, but stated they did not either witness the incident or interact with the officers. Det. Lacoste also made reference to § 87(2)(b) talking to these individuals in the lobby as an example of “casing” but could not describe this conversation in any way, and stated that they walked out before any part of this incident began.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be closed as **unsubstantiated**.

Allegation D—Abuse of Authority: Det. Rashaun Lacoste searched § 87(2)(b)

Allegation E—Abuse of Authority: Det. Rashaun Lacoste strip-searched § 87(2)(b)

§ 87(2)(b) alleged that Det. Lacoste reached his hands into his pockets and removed items. § 87(2)(b) also alleged that Det. Lacoste pulled the waistband of his pants exposing his penis and buttocks.

§ 87(2)(b) believed that he observed Det. Lacoste entering § 87(2)(b) pockets and looking down his pants, but his view was somewhat obscured by his position behind the peephole and he was not certain if these actions were done.

All officers denied that Det. Lacoste or any officer performed these actions. Moreover, while the UF-250 acknowledges a frisk occurred, it explicitly notes that no form of search occurred.

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation F—Abuse of Authority: Det. Rashaun Lacoste threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that Det. Lacoste told him, “I could lock you up for that beer.” Det. Lacoste admitted to making a similar statement, clarifying that he said that if § 87(2)(b) did not provide his identification he would have to be arrested to verify his identity.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **exonerated**.

Allegation G—Abuse of Authority: Det. Rashaun Lacoste spoke discourteously to individuals.

§ 87(2)(b) alleged that Det. Lacoste said, “Get the fuck out of here,” to the two unidentified individuals in the lobby. § 87(2)(b) did not corroborate this statement being made, and was viewing from a peephole behind a metal NYCHA door.

All officers denied that Det. Lacoste spoke discourteously, and as already discussed extensively, the participation of these other two individuals in the incident is heavily disputed.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date